

# STATE OF NEW YORK

10079--A

## IN ASSEMBLY

January 30, 2026

Introduced by M. of A. GIBBS -- read once and referred to the Committee on Education -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the education law, in relation to the qualifications to serve as a member of the citywide council on English language learners and of the citywide council on high schools

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Subparagraph (i) of paragraph (a) of subdivision 5 of section 2590-b of the education law, as amended by chapter 103 of the laws of 2013, is amended to read as follows:

(i) nine voting members who shall be parents of students who are or have been at any time enrolled in a bilingual or English as a second language program conducted pursuant to section thirty-two hundred four of this chapter[~~, some of whom may be parents of students who have been in such a program within the preceding two years~~], to be selected by parents of students who receive or have at any time received such services pursuant to a representative process developed by the chancellor. Such members shall serve a two year term and shall be eligible to continue serving their term following the conclusion of their child's enrollment in a bilingual or English as a second language program;

§ 2. Subparagraph (iii) of paragraph (a) of subdivision 6 of section 2590-b of the education law, as added by chapter 345 of the laws of 2009, is amended to read as follows:

(iii) one voting member who shall be a parent of a student who is or has been at any time enrolled in a bilingual or English as a second language program conducted in a public high school. Such member shall be appointed by the city-wide council on English language learners, and shall serve a two year term and shall be eligible to continue serving their term following the conclusion of their child's enrollment in a bilingual or English as a second language program;

§ 3. This act shall take effect immediately, provided, however, that the amendments to section 2590-b of the education law made by sections one and two of this act shall not affect the expiration or repeal of such provisions and shall expire and be deemed repealed therewith.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [~~-~~] is old law to be omitted.

LBD10424-02-6